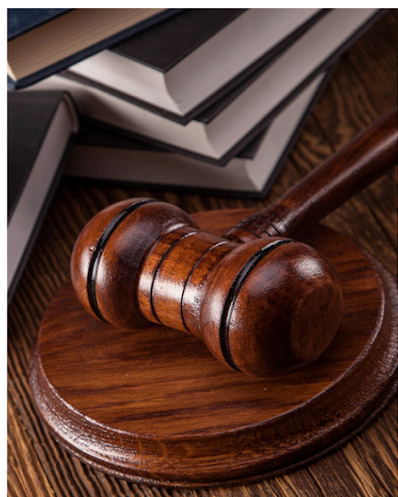


General Knowledge

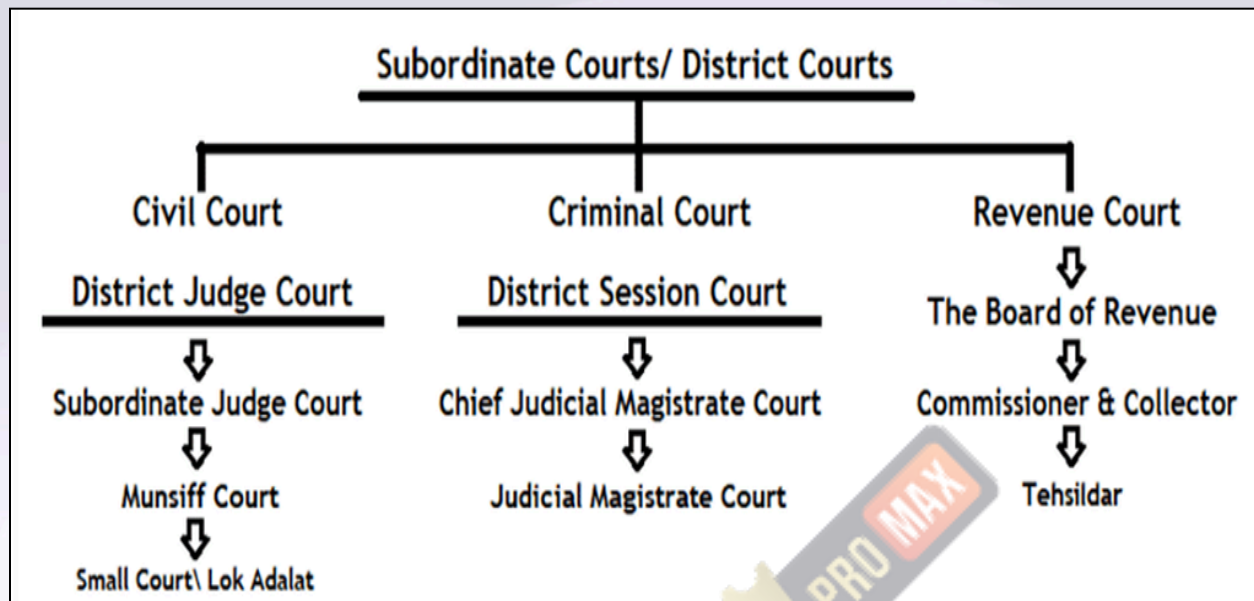
Indian Polity

STUDY NOTES

Subordinate Courts



SUBORDINATE COURTS



Introduction

- **Subordinate Courts** are the courts that function under the supervision of the **High Courts** and constitute the **lowest tier** of the judiciary in India. They deal with a vast range of **civil** and **criminal cases** at the **district** and **lower levels**.
- The judiciary in India is organized in a **three-tier system**, with the **Supreme Court** at the top, followed by the **High Courts**, and finally the **Subordinate Courts** at the grassroots level.
- The structure of subordinate courts is governed by **Articles 233 to 237** of the **Indian Constitution**, which outline the appointment, control, and jurisdiction of these courts.
- Subordinate Courts are essential for providing access to justice at the local level, making them integral to the **rule of law** in India.
- They play a significant role in adjudicating on matters of **civil disputes**, **criminal cases**, and various statutory obligations, ensuring **speedy and affordable justice**.

Detailed Explanation of Subordinate Courts

Constitutional Provisions for Subordinate Courts (Articles 233 to 237):

- **Article 233 – Appointment of District Judges:**
 - The **Governor of the State**, in consultation with the **High Court**, appoints **District Judges**.
 - To be eligible, the individual must have served as an advocate or pleader for at least **seven years** and should not be in the service of the government.
- **Article 234 – Recruitment to Judicial Service:**
 - Appointments of other judicial officers below the rank of District Judges are made by the **Governor** in consultation with the **State Public Service Commission** and the **High Court**.
- **Article 235 – Control over Subordinate Courts:**
 - The **High Court** exercises supervision and control over the posting, promotion, and leave of officers in the subordinate judiciary.
- **Article 236 – Definition of District Judge:**
 - The term **District Judge** includes judges such as **Sessions Judges, Additional Sessions Judges, Chief Judicial Magistrates**, and other civil judges of equivalent rank.
- **Article 237 – Application of Provisions:**
 - The provisions of **Chapter VI** of the Constitution relating to subordinate courts can be extended to any class or level of judicial officers by the Governor after consulting the High Court.

Hierarchy and Structure of Subordinate Courts:

- The subordinate judiciary consists of **District and Sessions Courts, Civil Courts, Criminal Courts**, and various **Special Courts**.

District and Sessions Courts:

- These courts are headed by the **District Judge**, who holds jurisdiction over **civil** matters. When dealing with **criminal cases**, the judge is known as a **Sessions Judge**.
- **Jurisdiction:**
 - **Civil Jurisdiction:** The District Court is the highest court in the district for civil matters and has **original** and **appellate jurisdiction**.

- **Criminal Jurisdiction:** As a **Sessions Court**, it handles cases involving serious criminal offenses, including those punishable by **life imprisonment** or **death penalty**, which requires confirmation from the High Court.

Civil Courts:

- **Subordinate Judges (Civil Judges):** Handle civil cases involving larger pecuniary stakes. These courts can hear appeals from lower courts (e.g., Munsiff Courts).
- **Munsiff Courts:** Deal with civil disputes of smaller pecuniary jurisdiction. These are the **lowest civil courts** in the district and play a key role in resolving minor civil matters.

Criminal Courts:

- **Chief Judicial Magistrate:** The highest-ranking judicial magistrate in a district, handling cases involving imprisonment of up to **seven years**.
- **Judicial Magistrate of First Class:** Deals with more serious criminal offenses, possessing the authority to pass sentences of **up to three years** of imprisonment.
- **Judicial Magistrate of Second Class:** Handles less severe cases, with powers to impose fines and shorter sentences.

Types of Subordinate Courts:

● Civil Courts:

- **Court of Small Causes:** These courts handle **minor civil disputes** and have jurisdiction to quickly dispose of cases where the financial stakes are relatively low. Appeals from these courts typically lie with the District Courts or directly to the High Court, depending on the value of the case.

● Criminal Courts:

- **Sessions Court:** The highest criminal court in a district, which deals with serious offenses such as **murder**, **rape**, and **theft**. The Sessions Judge can impose **capital punishment**, but this is subject to confirmation by the High Court.
- **Judicial Magistrates:** These magistrates handle various levels of criminal offenses, with **First Class Magistrates** having more jurisdiction over more severe crimes compared to **Second Class Magistrates**.

● Special Courts and Tribunals:

- In addition to the general civil and criminal courts, India also has **Special Courts** such as **Family Courts**, **Labour Courts**, **Consumer Courts**, and **Juvenile Justice**

Boards to deal with specific matters requiring specialized knowledge or faster resolution.

- **Family Courts:** Set up under the **Family Courts Act, 1984**, these courts deal with matters related to **marriage, divorce, child custody, guardianship, and maintenance**. These courts aim to promote reconciliation between parties and handle cases in a non-adversarial manner.
- **Labour Courts and Industrial Tribunals:** These courts deal with disputes related to labor, including matters of **wages, working conditions, and dismissal**.

- **Role of National Legal Services Authority (NALSA):**

- Established under **Article 39A** and the **Legal Services Authorities Act, 1987**, NALSA promotes **free legal aid** to ensure justice for weaker sections of society.
- NALSA organizes **Lok Adalats** and provides legal literacy programs to improve access to justice for marginalized communities.
- Lok Adalats are especially useful in facilitating the settlement of disputes through **conciliation** and **compromise**, with their decisions having the same status as a **civil court decree**.

- **Lok Adalats:**

- **Meaning:** Lok Adalats are **people's courts** that help resolve disputes through amicable settlement, avoiding long court procedures.
- **Statutory Backing:** Lok Adalats are constituted under the **Legal Services Authorities Act, 1987**, and are designed to provide **speedy justice** without the strict procedures followed by other courts.
- **Features:**
 - Lok Adalats do not follow a rigid legal process, which makes them flexible and efficient in disposing of cases.
 - The **award** given by Lok Adalats is final and cannot be appealed, ensuring the quick disposal of cases.

Gram Nyayalayas:



- Established under the **Gram Nyayalayas Act, 2008**, these are mobile courts set up in rural areas to provide **justice at the grassroots level**.
 - **Jurisdiction:** These courts handle both **civil** and **criminal cases**, emphasizing the **conciliation** process.
 - **Purpose:** To ensure access to justice for **socially disadvantaged** and **rural populations**, minimizing the need for people to travel to distant district courts.
- **Important Features of Subordinate Courts:**
- **District Judges** are the highest authorities in the district judiciary, overseeing both civil and criminal cases.
 - **Sessions Courts** deal with **serious criminal cases**, including those punishable by **life imprisonment** or **capital punishment**.
 - **Lok Adalats** and **Gram Nyayalayas** offer speedy and cost-effective means of settling disputes without the need for lengthy court trials.

- **Family Courts** handle personal matters like **divorce**, **child custody**, and **maintenance**, focusing on **conciliation** and informal procedures.

- **Points to Remember:**

- Subordinate Courts, including **civil**, **criminal**, and **special courts**, function under the direct control of the **High Courts**.
- **The National Legal Services Authority (NALSA)** ensures equal access to justice by providing free legal aid to vulnerable sections.
- **Gram Nyayalayas** and **Lok Adalats** play an important role in delivering justice at the grassroots level, ensuring that judicial remedies are available to all citizens.
- **Special Courts** like **Family Courts** and **Labour Courts** handle cases that require specialized knowledge or faster resolution.